



CHAPTER 84.

An Act to amend the Law with respect to Clubs during the continuance of the present war. [10th November 1915.] A.D. 1915.

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The Secretary of State may, by order, direct that all clubs (whether or not intoxicating liquor is supplied therein) within any such area as may be specified in the order shall be closed during such hours as may be so specified (commencing at an hour not earlier than that at which premises, licensed for the sale of intoxicating liquors by retail situate in the same place as such clubs, are for the time being required to be closed and ending at an hour not later than six o'clock in the morning) :

Power to order clubs to be closed during specified hours.

Provided that the local authority for the purpose of this Act may grant a licence exempting from the provisions of the order, either absolutely or subject to such conditions or limitations as may be specified in the licence—

- (a) any club on any special occasion ;
- (b) any club where it is proved that, owing to the nature and hours of employment of members thereof, or for any other special reason, it is expedient that the club should be so exempted.

(2) If any club is kept open or the club premises or any part thereof are used in contravention of any such order, or, in cases where such a licence as aforesaid has been granted, in contravention of any condition of the licence, the club shall be liable to be declared an illegal club, and—

- (a) the occupier of the premises and any person having control of the club, and the secretary or other principal officer of the club shall each be liable on summary conviction to imprisonment with or without hard labour for a term not exceeding three months, unless he proves that the contravention was committed

A.D. 1915.
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without his knowledge or consent, and the court may in addition by order prohibit him from taking part or assisting in the management of or being interested in any club; and

(b) any other person proved to have been on the club premises in contravention of the order or the conditions of the licence shall be liable on summary conviction to a fine not exceeding five pounds, unless he proves that he resided on the club premises or that he was not a member or a guest of a member of the club.

(3) If any person so prohibited as aforesaid takes part or assists in the management of or is interested in a club, the club shall be liable to be declared an illegal club.

Prohibition
against use of
clubs by pros-
titutes and
gamesters.

2. If any person having control of a club knowingly permits it to be used as an habitual resort or place of meeting of reputed prostitutes, whether the object of their so resorting or meeting is or is not prostitution, or of persons who have been convicted of offences under the enactments relating to gaming or betting or gaming or betting houses, he shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment with or without hard labour for a term not exceeding three months.

Inspection of
clubs.

3.—(1) With a view to securing the observance of this Act all clubs within the area specified in any order made by the Secretary of State under this Act may be inspected by any officer of police not below the rank of inspector, and, in the case of clubs which there is reason to believe are frequented by members of any of His Majesty's forces, by any person authorised for the purpose by the competent naval or military authority under the Defence of the Realm (Consolidation) Regulations, 1914, and for that purpose any such officer or person shall at all times, whether by day or night, have a right to enter, if need be by force, any premises within the area which he has reason to suspect are being used as a club, and to examine, search, and inspect the same, or any part thereof, and if he has reason to suspect that an offence against this Act has been or is being committed thereon, or that the club is otherwise being carried on contrary to law, may take the names and addresses of all persons found therein, and may seize any books and papers relating to the business of the club.

(2) If the officer of police or other person making the inspection has reasonable ground to suppose that any name or address given to him is false, he may require evidence of the correctness of the name and address, and may, if the person fails upon demand to give his name or address or the required evidence, apprehend him without warrant, and take him, as soon as practicable, before a justice of the peace, and if any person required under this section to give his name and address fails to give the

same or gives a false name or address, or gives false evidence with respect to the name and address, he shall be liable on summary conviction in respect of each offence to a fine not exceeding five pounds. A.D. 1915.

(3) If any person obstructs or delays any such officer of police or person in the execution of his duties under this section, he shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment, with or without hard labour, for a term not exceeding three months, and if the entry of any such officer or person to any premises is delayed by locked doors or other obstruction, the club shall be liable to be declared an illegal club, unless it is proved that there was good reason for locking the doors or such other obstruction.

(4) Where any police officer or person duly authorised by the competent naval or military authority has, in pursuance of the powers conferred by this Act, entered any premises which are or which he has reason to suspect are being used as a club, and it appears to the officer or person that the premises are being used for the purposes of unlawful gaming, the officer or person may exercise all such powers as are conferred by the provisions of the Gaming Act, 1845, or section forty-eight of the Metropolitan Police Act, 1839, or section thirty-two of the City Police Act, 1839, on an officer of police who has entered premises in pursuance of an authority or warrant granted thereunder by the Commissioner of Police for the metropolis, or the Commissioner of City Police, or a justice. 8 & 9 Vict.
c. 109.
2 & 3 Vict.
c. 47.
2 & 3 Vict.
c. xciv.

4.--(1) If on complaint in writing it appears to a court of summary jurisdiction that a club is liable to be declared an illegal club within the meaning of this Act, the court may make an order declaring the club to be an illegal club and directing that the club shall be closed, and that the premises occupied by the club shall not be used for the purposes of any club during the continuance of the present war or any other period specified in the order, so, however, that if the period so specified extends beyond the duration of the war the order shall cease to have effect on the termination of the war. Power to close
illegal clubs.

(2) If the court grant a summons on the complaint, the summons shall be served on the secretary (if any) of the club, and on such other person (if any) as the court may direct.

(3) Any person aggrieved by an order under this section may appeal to quarter sessions.

5.--(1) Where during the continuance of the present war an application is made under the Licensing (Consolidation) Act, 1910, to register a new club under that Act, the clerk to whom the application is sent before registering the club shall send to the chief officer of police for the district a copy of the particulars required to be registered, and if, within fourteen days from the date when such copy is so sent, the chief officer of police sends to the clerk notice that he objects to the registration Provisions as
to registration
of new clubs.
10 Edw. 7. &
1 Geo. 5. c. 24.

A.D. 1915. — of the club on the ground of the character or antecedents of the secretary or of any promoter or any person taking part in the management of the club, the clerk shall give notice of the objection to the applicant and shall not register the club.

(2) Where the registration of a club has been so objected to, the applicant for registration may, by complaint in writing made within fourteen days of the time when he receives notice of the objection, appeal against the objection to a court for which the clerk to whom the application was sent acts, and the court, if satisfied that the objection taken by the chief officer of police ought not to be sustained, may authorise the registration of the club.

(3) During the continuance of the present war there shall be included amongst the particulars required to be registered in connection with a new club under the Licensing (Consolidation) Act, 1910, the names and addresses of the promoters of the club, the proprietor (if any), and the persons taking part in the management of the club; and if any change takes place in the names and addresses of such persons as aforesaid, the secretary of the club shall forthwith communicate the change to the clerk by whom the particulars are registered, who shall make the necessary entry in the register, and failure to communicate such changes shall be a ground on which the club may be struck off the register.

(4) The persons whose names are for the time being registered as secretary, proprietor, promoters, or managers of the club shall be presumed to be such unless the contrary is proved.

Interpretation.

6. For the purposes of this Act—

The local authority shall be—

(a) in the Metropolitan Police District, the Commissioner of Police for the metropolis;

(b) in the City of London, the Commissioner of City Police;

(c) in any other place, a petty sessional court:

The expression "chief officer of police" means as respects the City of London the Commissioner of City Police and elsewhere has the same meaning as in the Police Act, 1890:

The proprietor, the manager, every member of the managing body (if any), and every other person who acts or assists in the management of a club, shall be deemed to be a person having control of the club:

The expression "secretary" in relation to a club has the same meaning as in the Licensing (Consolidation) Act, 1910.

7.—(1) This Act may be cited as the Clubs (Temporary Provisions) Act, 1915. A.D. 1915.

(2) This Act shall not extend to Scotland or Ireland.

Short title
and duration.

(3) This Act shall remain in force during the continuance of the present war and no longer, but the expiration of this Act and of any order thereunder shall not prejudice or affect the institution or prosecution of any proceedings for any offence committed before such expiration.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.